

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELORS

STATE OF COLORADO

Case No. 2012-002593 and 2012-004935

ORDER TO CEASE AND DESIST

IN THE MATTER OF THE UNAUTHORIZED AND UNLAWFUL PRACTICE OF
PROFESSIONAL COUNSELING IN THE STATE OF COLORADO BY JULIE FISHER,

Respondent.

The State Board of Licensed Professional Counselor Examiners ("Board"), having reviewed the written complaint and all other available information in this matter at the regularly scheduled meeting held on November 2, 2012, HEREBY FINDS:

1. That the Board has jurisdiction over Julie Fisher ("Respondent") and the subject matter herein, and there exists credible evidence that Respondent has acted without the required license in violation of §12-43-215, C.R.S. and has held herself out as being a licensed professional counselor in Colorado as defined in § 12-43-201(5), C.R.S., in violation of §§ 12-43-216 and 12-43-604(1), C.R.S.

2. Respondent is not licensed to practice professional counseling in the State of Colorado.

3. Licensure is required for any person practicing professional counseling in Colorado, as provided in § 12-43-604, C.R.S.

4. In or about March 2012, Respondent held herself out as a professional counselor able to practice in Colorado as defined in § 12-43-201(5), C.R.S., without being licensed as required by §§ 12-43-216 and 12-43-604, C.R.S.

5. Respondent's conduct constitutes unlawful activity in violation of §§ 12-43-216 and 12-43-604(1), C.R.S.

6. Based on the information contained in the complaint and all other available information in this matter, reasonable grounds and credible evidence exists to believe, and the Board finds, that the Respondent acted in violation of §§ 12-43-216 and 12-43-604(1), C.R.S.

THEREFORE, IT IS HEREBY ORDERED, pursuant to § 12-43-223(4)(a), C.R.S., that Respondent immediately CEASE AND DESIST from engaging in unlawful activities in violation of §§ 12-43-216 and 12-43-604(1), C.R.S.

Within ten days after service of this Cease and Desist Order, Respondent may request a hearing on whether such acts or practices in violation of Article 43 of Title 12, C.R.S. have occurred. Such hearing shall be conducted pursuant to §§ 24-4-104 and 24-4-105, C.R.S.

The Board authorized the undersigned representative to sign this Cease and Desist Order on its behalf.

DATED this 3rd day of December, 2012.

FOR THE STATE BOARD OF LICENSED
PROFESSIONAL COUNSELOR EXAMINERS



BY: _____

Jacqueline Arcelin
Acting Program Director
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